

Microsoft Silverlight Partner Initiative Agreement

Microsoft Corporation (“we” or “us”) and “you,” the entity signing below, agree as follows:

1. **BACKGROUND.** We have established a Microsoft Silverlight Partner Initiative (“**Initiative**”), in which third parties who design or offer applications that use Silverlight or provide services or tools that help others use Silverlight are eligible to participate in the Initiative. You and we desire your participation in the Initiative, subject to the terms and conditions of this Microsoft Silverlight Partner Initiative Agreement (“**Agreement**”).

2. DEFINITIONS.

2.1 “**Eligible Offerings**” means your

- applications that use Silverlight and comply with the guidelines in the Microsoft Silverlight Software Development Kit;
- tools for enabling others to use Silverlight; or
- services that help others use Silverlight

2.2 “**Customer Showcase Application**” means an application using Silverlight that you develop for your customer(s) and that is on a public-facing Web site.

2.3 “**Showcase**” means the Silverlight showcase website described in Exhibits B-D.

2.4 “**Silverlight**” means Microsoft’s cross-browser, cross-platform browser plug-in for delivering the next generation of .NET-based media experiences and rich interactive applications for the Web that we offer during the Term under the name “Silverlight.”

3. BENEFITS AND CONDITIONS.

3.1 **Participation Level.** You will start at the “Standard” level and will then be eligible to participate in the “Alliance” or “Premier” level if you meet and maintain the qualifications in Section 3.3. There are three levels of participation:

- “**STANDARD**” LEVEL – as described in Exhibit B
- “**ALLIANCE**” LEVEL – as described in Exhibit C
- “**PREMIER**” LEVEL – as described in Exhibit D

3.2 **General Conditions.** You may participate in the marketing and technical support benefits corresponding to the level at which you qualify (the “**Benefits**”) but only so long as you:

- (a) develop, build, and maintain an active Silverlight-specific Web page (“**Offering Page**”) and associated Uniform Resource Locator (“**URL**”) (in the following format: <http://[domainname]/silverlight>) that highlights or delivers your Eligible Offerings and/or contains active links to Customer Showcase Applications. The Offering Page will be live and publicly available no later than sixty (60) days after the beginning of the Term;
- (b) develop and commercially release your Eligible Offerings or develop and deliver Customer Showcase Applications;
- (c) comply with the terms of this Agreement; and
- (d) engage proactively with the Microsoft team responsible for the Benefits. Examples of such engagement include:

- maintaining current contact information, including for the Directory as described in Exhibits B-D;
- maintaining active links to your Offering Page and your Eligible Offering(s), if you want to be featured in the Showcase;
- cooperating in any case studies described in Exhibits C and D, including providing necessary information (such as brief background information, description of Eligible Offering, description of specific client case study, and/or quote); and
- for any joint or Microsoft-initiated press release, providing an executive quote by requested date.

3.3 Level-Specific Conditions. The number of Eligible Offerings you develop and commercially release and/or the number of Customer Showcase Applications for which you can provide a working public URL will determine which level of the Initiative you will be eligible to join. In order to be eligible for and maintain your respective level, you will have to submit working public URLs for your Customer Showcase Applications to the Silverlight Partner Manager, within ninety (90) days of joining the Initiative.

- “Standard” Level. Standard-level members will develop and commercially release (1) one new Eligible Offering during the Term.
- “Alliance” Level. Alliance-level members will develop and commercially release (10) ten new Eligible Offerings or develop ten (10) Customer Showcase Applications during the Term. They will provide links to Customer Showcase Applications, to which we may, at our option, provide a link from the Showcase.
- “Premier” Level. Premier-level members will develop and commercially release (30) thirty new Eligible Offerings or develop thirty (30) Customer Showcase Applications during the Term. They will provide links to Customer Showcase Applications, to which we may, at our option, provide a link from the Showcase.
- Additional Requirements for Content Delivery Networks. If you are a content delivery network and wish to join the Initiative at the Alliance or Premier level, then in addition to the above requirements for Alliance or Premier level participation, you must *also* be certified by Keynote Systems (or any successor certification company approved by us) as having met the corresponding level (“Alliance” or “Premier”) of the Microsoft Windows Media Hosting Provider Certification Program.

3.4 Special Introductory Terms. To accommodate the fact that it may take you some time to reach the Alliance or Premier level, you may, upon written request to us, participate in the Benefits corresponding to such applicable level so long as:

- you develop and commercially release
 - at least three (3) Eligible Offerings or three (3) Customer Showcase Applications within three (3) months from the beginning of the Term if you are claiming Alliance-level membership; or
 - at least eight (8) Eligible Offerings or eight (8) Customer Showcase Applications within three (3) months from the beginning of the Term if you are claiming Premier-level membership; and
- upon our request, you demonstrate that you are progressing towards reaching the applicable membership level.

If we determine, at our sole discretion, that you are not adequately progressing towards such membership level, we may reduce your membership level and its corresponding Benefits. **This advance provision of Benefits is available for a limited time only and only during the inaugural year of the Initiative.**

- 3.5 **Additional Rules for Counting Customer Showcase Applications.** No more than 3 Customer Showcase Applications per customer will count towards the total number of such Applications when determining your eligibility under Sections 3.3 and 3.4. For example, if you build 6 Customer Showcase Applications for Company X, only 3 of them will count towards your total number of Customer Showcase Applications.

4. LICENSES AND OBLIGATIONS.

- 4.1 **YOUR OFFERINGS.** You hereby grant to us a nonexclusive, perpetual, irrevocable, royalty-free, fully paid-up, and worldwide license to
- (a) publicly perform, broadcast, transmit and display Eligible Offerings (including content on the Eligible Offerings and any trademarks and service marks, trade dress, trade names, corporate names, designs, slogans, domain names and proprietary logos (collectively "**Marks**") in the Eligible Offerings) at Microsoft meetings, at presentations to customers or partners, at other Microsoft-sponsored events, at such industry conferences, events and presentations as are selected by Microsoft, and on Microsoft-sponsored properties (such as the Showcase or another Microsoft-hosted Web site). We will abide by any reasonable usage guidelines provided by you with respect to your Marks; and
 - (b) to sublicense to third parties the foregoing rights for evaluation purposes in connection with any of the foregoing events or properties.
- 4.2 **OUR LOGO.** You will prominently display the "Powered by Silverlight" logo depicted in Exhibit E (the "**Logo**") on your Offering Pages, download sites, all retail product packaging (if any), and end user documentation for your Eligible Offerings, in accordance with Exhibit E. You may also use the Logo with Eligible Offerings in the ways permitted in Exhibit E and on other Web pages that discuss your Eligible Offerings on your Web site, provided that such Web pages are no more than three "clicks" away from your main home Web page and you otherwise fulfill the terms and conditions of Exhibit E.
- 4.3 **NO LICENSE TO MICROSOFT SOFTWARE.** Nothing in this Agreement gives you license rights to any Microsoft Software. If we give you complimentary copies of software (such as any complimentary copies of Microsoft Expression Studio provided in Exhibit C or D), your rights to them are governed by their own end user license terms.
5. **YOUR WARRANTIES.** You represent and warrant that (a) you have the right to enter into and perform this Agreement; (b) there is no pending or threatened dispute or controversy relating to Eligible Offerings; (c) Eligible Offerings comply with all applicable laws; and (d) Eligible Offerings do not violate any third party intellectual property or other legal rights. Further, you warrant that: (y) Eligible Offering will comply with all applicable laws; and (z) Eligible Offerings will not violate any third party intellectual property or other legal rights.
6. **DISCLAIMER OF WARRANTY.** We give no express warranties, guarantees or conditions regarding any technical support services or training provided to you under this Agreement and disclaim all warranties that might otherwise be implied by law. In addition, we make no representations, assurances, or warranties regarding the number of customers that you may gain or any other benefits that you may enjoy as a result of the Benefits.
7. **LIMITATION ON AND EXCLUSION OF REMEDIES AND DAMAGES.** You can recover from us only direct damages up to the amount you paid under this Agreement. You cannot recover any other damages, including lost profits or consequential, special, indirect, or

incidental damages. This limitation applies to (a) anything related to any software, services, content (including code) on third party Internet sites, or third party programs; and (b) claims for breach of contract, breach of warranty, guarantee or condition, strict liability, negligence, or other tort to the extent permitted by applicable law. It also applies even if we knew or should have known about the possibility of the damages. The above limitation or exclusion may not apply to you because your country may not allow the exclusion or limitation of incidental, consequential, or other damages. The above limitation or exclusion also does not apply to our obligation to indemnify and defend you pursuant to Section 6(a) of Exhibit E.

8. **CONFIDENTIALITY.** If you have signed a standard reciprocal Microsoft Corporation Non-Disclosure Agreement (“NDA”) with us, then any Confidential Information (as defined therein) relating to the subject matter of this Agreement, including the terms of this Agreement, will be subject to the NDA. If not (or upon any termination of that NDA during the Term), the following terms apply:

8.1 **Definition.** The terms of this Agreement and any other information that we designate as confidential and disclose to you are our “**Confidential Information**.”

8.2 **Use.** For 5 years following the date that we disclose any Confidential Information to you, you may not disclose Confidential Information to third parties. You may disclose Confidential Information only to your employees and consultants who need to know the information to assist you and who have written agreements with you that protect the Confidential Information at least as much as this Agreement.

8.3 **Exclusions.** You may disclose Confidential Information in response to a judicial or governmental order. You must first give written notice to us to allow us to seek a protective order or otherwise protect the information. Confidential Information does not include information that (a) becomes publicly known through no wrongful act; (b) you received from a third party who did not breach confidentiality obligations to Microsoft or its suppliers; or (c) you developed independently.

8.4 **Media Communications.** Any press release or communication to the press or public regarding this Agreement and the parties’ relationship will be made only after prior consultation with and written approval of each party. You may, however, publicly describe your participation in the Initiative in a way that is accurate, is not misleading in any way, and does not claim or imply Microsoft endorsement of you or Eligible Offerings. We may also use your non-confidential information, at our discretion, to create marketing and promotional materials for Silverlight and/or for the Initiative.

9. TERM AND TERMINATION.

9.1 **Term.** This Agreement will become effective on the later of the dates you and we sign it, and will end on the one-year anniversary of that date, unless terminated earlier (“**Term**”).

9.2 **Breach; Termination of Agreement; Suspension of Benefits.**

(a) During the Term, either party may immediately terminate this Agreement (a) upon the other party’s breach of Sections 5, 8, or 10.5 or its infringement of the first party’s proprietary rights; (b) for any *other* breach of this Agreement by the other party that is not cured within 30 days after delivery of written notice of such breach; or (c) if the other party is found bankrupt, admits its inability to pay or ceases to pay debts as they become due, or otherwise reasonably can be considered insolvent.

(b) Failure to meet the release cadence requirements or certification requirements in Section 3.3 will not result in termination. However, we may reduce the scope of Benefits provided to you.

9.3 **Effect of Termination.** Neither party will be responsible for any costs or damages resulting from the termination of this Agreement in accordance with this Agreement.

9.4 **Survival.** All definitions, Sections 5 through 10, and Exhibit E will survive expiration or termination of this Agreement.

10. GENERAL.

10.1 **Notices.** All notices, authorizations, and requests in connection with this Agreement will be in writing. Notices will be deemed given on the day of receipt by messenger, delivery service, email, fax, or U.S. mail (postage prepaid, certified or registered, return receipt requested) and addressed as follows (or to such other address as may be designated by written notice under this Section):

If to us:	If to you:
Microsoft Corporation	Address:
One Microsoft Way	Attention:
Redmond, WA 98052-6399	Fax:
USA	Email:
Attention: Silverlight Partner Manager	
Copy to: Silverlight Partner Attorney	
Fax: (425) 936-7329	

10.2 **Our Relationship.** Even if we call you a "partner," you are an independent contractor for purposes of this Agreement. This Agreement will not be construed as creating a partnership, joint venture, agency, or franchise relationship or any fiduciary duty. You do not have the power to (a) make any promise or warranty on behalf of us or our affiliates; (b) vary any terms, conditions, warranties, or covenants by us or our affiliates; or (c) grant any person any rights that we have not previously authorized in writing.

10.3 **Waivers.** No waiver of any breach of any term of this Agreement will constitute a waiver of any other breach of the same or other terms. No waiver will be effective unless made in a writing signed by an authorized representative of the waiving party.

10.4 **Severability.** If a court finds any term of this Agreement to be unenforceable, unlawful, or invalid, that term will be enforced to the maximum extent permissible so as to effect the intent of the parties, and the remainder of this Agreement will continue in full force and effect.

10.5 **Assignment.** You may not assign this Agreement, or any rights or obligations in this Agreement, without our prior written consent. For purposes of this Agreement, an "assignment" by you includes each of: (a) a change in your beneficial ownership of greater than 20% (whether in a single transaction or series of transactions) if you are a partnership, trust, limited liability company, or other like entity; (b) your merger with another party, whether or not you are the surviving entity; (c) the acquisition of more than 20% of any class of your voting stock (or any class of non-voting security convertible into voting stock) by another party (whether in a single transaction or series of transactions); and (d) the sale or other transfer of more than 50% of your assets (whether in one or multiple transactions).

10.6 **Governmental Approvals.** You will, at your own expense, obtain and maintain in full force and effect all governmental approvals or filings, if any, and comply with all applicable laws and regulations, in connection with your performance under this Agreement.

10.7 **Applicable Law.** If you are based outside of the European Union, this Agreement will be governed by the laws of the State of Washington and the United States. Otherwise, this Agreement will be governed by the laws of Ireland. The 1980 United Nations Convention on Contracts for the International Sale of Goods will not apply to this Agreement.

- 10.8 **Dispute Resolution.** If we bring an action to enforce this Agreement, we will bring it in the jurisdiction where you are based. If you bring an action to enforce this Agreement against us or any of our affiliates located outside of the European Union, you will bring it in the State of Washington, USA. Otherwise, you will bring such action in Ireland. Either party may, however, seek injunctive relief with respect to a violation of intellectual property rights or confidentiality obligations in any appropriate jurisdiction.
- 10.9 **Entire Agreement; Modifications.** This Agreement, including its Exhibits, together with the NDA (if any), is the entire agreement between you and us with respect to the subject matter of this Agreement. This Agreement does not apply to any Microsoft software, which are governed by their own end user license agreements. Except as otherwise provided herein, this Agreement will not be modified except by a subsequent written agreement signed by your and our authorized representatives.

MICROSOFT CORPORATION

Signature: _____

Printed name: _____

Title: _____

Date: _____

Tom Honeybone

TOM HONEYBONE

SENIOR DIRECTOR, BUSINESS DEV.

Jan 14, 2008

YOU:

Entity name: _____

Signature: _____

Printed name: _____

Title: _____

Date: _____

EXHIBIT A

DESCRIPTION OF ELIGIBLE OFFERINGS

Offering Name	Version Number	Description

If you are a Premier- or Alliance-level member and wish to maintain those benefits, please notify the Microsoft Silverlight Partner manager, by emailing slpart@microsoft.com of other Eligible Offerings or Customer Showcase Applications that you have released after signing this Agreement.

EXHIBIT B

BENEFITS--“STANDARD” LEVEL

Benefits.

- **Member Directory.** Eligible for inclusion in a directory of all Initiative members (“**Directory**”), provided that you provide us with your relevant information (including mailing address, email address, telephone number, website address, and contact person) and keep that information up-to-date.
- **Press Activities.** Access to Microsoft quote for your company press release.
- **Marketing Materials.** Eligible for inclusion in Initiative-specific marketing materials.
- **Showcase.** We are considering developing and launching a Silverlight showcase website, where members are eligible to submit their respective Eligible Offering(s) and related links, which may, at our sole discretion, be displayed in descending order based on such metrics as the number of views, number of downloads, and peer-ratings. You will have to maintain active links for your most recently submitted Offering(s).
- **Logo.** Right to use the Logo (pursuant to Section 4.2 of the Agreement).
- **Training.** Web based training.

Based on feedback from you and other Initiative members, we may, at our discretion, expand on the above Benefits.

EXHIBIT C

BENEFITS—"ALLIANCE" LEVEL

1. Marketing Benefits.

- Member Directory. Eligible for inclusion in a directory of all Initiative members ("**Directory**"), provided that you provide us with your relevant information (including mailing address, email address, telephone number, website address, and contact person) and keep that information up-to-date. We may design the Member Directory to include a separate section where Alliance and Premier members will be featured on a rotating basis.
- Press Activities. Eligible for inclusion in Microsoft press activities. Access to Microsoft quote in member press release.
- Initiative-Sponsored Events. Invitation to the annual Initiative event and a series of mixers.
- Marketing Materials. Eligible for inclusion in Initiative-specific marketing materials.
- Showcase. We are considering developing and launching a Silverlight showcase website, where members are eligible to submit their respective Eligible Offering(s) and related links, which may, at our sole discretion, be displayed in descending order based on such metrics as the number of views, number of downloads, and peer-ratings. We may include a separate section where Alliance and Premier members are, at our sole discretion, featured on a rotation basis. You will have to maintain active links for your most recently submitted Offering(s).
- Logo. Right to use the Logo (pursuant to Section 4.2 of the Agreement).
- Designer Tools Software. Two (2) complimentary copies of Microsoft Expression Studio, by download or other delivery method, as agreed by the parties.
- Eligible to participate in any Silverlight Strategy Update conference call that is sponsored under the Initiative.

2. Technical Benefits.

- Training. Web based training.
- Member Briefings and Training. Two 30% discounted passes to Microsoft's MIX conference.

Based on feedback from you and other Initiative members, we may, at our discretion, expand on the above Benefits.

EXHIBIT D

BENEFITS—"PREMIER" LEVEL

1. Marketing Benefits.

- **Member Directory.** Eligible for inclusion in a directory of all Initiative members ("**Directory**"), provided that you provide us with your relevant information (including mailing address, email address, telephone number, website address, and contact person) and keep that information up-to-date. We may design the Member Directory to include a separate section where Alliance and Premier members will be featured on a rotating basis.
- **Press Activities.** Inclusion in Microsoft press activities, including opportunity to be considered for a Microsoft press release. Access to Microsoft executive quote in member press release.
- **Initiative-Sponsored Events.** Up to two (2) complimentary invitations to the annual Initiative event and a series of mixers.
- **Marketing Materials.** Eligible for inclusion in Initiative-specific marketing materials.
- **Showcase.** We are considering developing and launching a Silverlight showcase website, where members are eligible to submit their respective Eligible Offering(s) and related links, which may, at our sole discretion, be displayed in descending order based on such metrics as the number of views, number of downloads, and peer-ratings. We may include a separate section where Alliance and Premier members are, at our sole discretion, featured on a rotation basis. You will have to maintain active links for your most recently submitted Offering(s).
- **Logo.** Right to use the Logo (pursuant to Section 4.2 of the Agreement).
- **Designer Tools Software.** Two (2) complimentary copies of Microsoft Expression Studio, by download or other delivery method, as agreed by the parties.
- **Customer Case Studies.** Eligible to be *featured* in at least one customer case study.
- **Contact Point.** Access to a designated Silverlight business development contact.
- **Silverlight Quarterly Strategy Update.** Eligible to participate in any Silverlight Strategy Update conference call that is sponsored under the Initiative.
- **Presentation to Sales Force.** Upon at least sixty days' written notice to us, we will provide a business development presentation relating to Silverlight to your sales force.
- **Trade Show Participation.** Eligible, upon invitation, to participate in Microsoft Partner Pavilion at relevant conferences or trade shows. Member is responsible for relevant registration fees.

2. Technical Benefits.

- **Training.** Technical training at your facility.
- **Member Briefings and Training.** Two (2) complimentary passes to Microsoft's MIX conference.
- Access to the Early Adopter Program.

Based on feedback from you and other Initiative members, we may, at our discretion, expand on the above Benefits.

EXHIBIT E

MICROSOFT SILVERLIGHT LOGO LICENSE AGREEMENT

This Microsoft Silverlight Logo License Agreement ("LLA") forms part of and is incorporated by reference to the Microsoft Silverlight Partner Initiative Agreement signed by you and us (the "Agreement"). In the event of any inconsistency between the Agreement and this LLA, the Agreement will prevail.

1. **DEFINITIONS.** In addition to the terms defined in the Agreement:

(a) "**Criteria**" means that Product must (i) include code that requires the Silverlight browser plug-in for users to receive, view, render and/or interact with Product, and (ii) comply with the Microsoft Silverlight Software Development Kit ("SDK").

(b) "**Licensee**" means you, as defined in the Agreement.

(c) "**Logo**" or "**Logos**" are the "Powered by Microsoft Silverlight" logo shown in Attachment 1 to this LLA, and any other logos Microsoft may provide under this LLA.

(d) "**Microsoft**" means us, as defined in the Agreement.

(e) "**Product**" or "**Products**" are Licensee's online applications, tools, or services that meet the Criteria.

(f) "**Quality Standards**" are the conditions described in paragraph 4(a) of this LLA.

(g) "**Start Date**" is the later of the signature dates below. It will be the date when the LLA takes effect.

(h) "**Style Specifications**" are the specifications for using the Logos, which will be provided by Microsoft and posted at a URL to be identified by Microsoft at a later date. Microsoft may change the URL, but if it does, Microsoft will use reasonable means to redirect Licensee to any new URL where the Style Specifications are posted.

2. LICENSE GRANT & RESTRICTIONS

(a) Microsoft grants Licensee a worldwide, nonexclusive, nontransferable, royalty-free, license to use the Logos solely in connection with Product

that meets the Quality Standards. Licensee must use the Logos as shown in Attachment 1 and described in the Style Specifications. Microsoft reserves all rights not expressly granted herein.

(b) Licensee may not:

(i) use the Logo in a way that may cause confusion about whether Products are Microsoft's products;

(ii) do or say anything that implies that Microsoft is affiliated with, sponsors, endorses or approves of Licensee or its Products other than as allowed by this LLA;

(iii) use the Logo in a way that implies that non-licensed products meet the Criteria;

(iv) do or say anything that may cause confusion about whether Microsoft owns the Logo;

(v) register, adopt or use any name, trademark, domain name or other designation that includes or violates Microsoft's rights in the Logo or any Microsoft trademark in the Logo;

(vi) use the Logo in a way that would damage Microsoft's reputation or goodwill in the Logo; or

(vii) alter, animate or distort the Logo or combine it with any other symbols, words, images or designs.

3. OWNERSHIP, IDENTIFICATION & USE

(a) Licensee acknowledges that:

(i) Microsoft is the sole owner of the Logo and the goodwill associated with the Logo;

(ii) Licensee will not acquire any right, title or interest in the Logo because of Licensee's use of the Logo; and

(iii) Microsoft is the sole beneficiary of the goodwill associated with Licensee's use of the Logo.

(b) Licensee must use the ™ or ® symbols next to the Logo, as shown in Attachment 1.

(c) Licensee must display the following trademark notice on all materials where the Logo is used:

"Microsoft, Silverlight and the Silverlight logo are trademarks of the Microsoft group of companies."

(d) Licensee will take reasonable steps to notify Microsoft if Licensee becomes aware of any suspected violation of or challenge to Microsoft's rights in the Logo. Microsoft will have the sole right to determine, in its sole discretion, whether to take legal action to enforce or defend its rights in the Logo and will control any legal action concerning the Logo.

4. QUALITY CONTROL

(a) Licensee may use the Logo solely in connection with Products that:

- (i) meets the Criteria;
- (ii) meets or exceeds the quality of online applications or services provided or distributed by Licensee before the Start Date;
- (iii) meets or exceeds standards of quality and performance generally accepted in the industry; and
- (iv) complies with all applicable laws, rules and regulations.

(b) Licensee will cooperate with Microsoft to enable Microsoft to review Licensee's use of the Logo and ensure that Product complies with the Quality Standards. Licensee will promptly correct any improper use of the Logo and any Product that does not comply with the Quality Standards upon reasonable notice from Microsoft.

5. INDEMNIFICATION FROM LICENSEE

Licensee will indemnify and defend Microsoft from and against any and all third party claims, damages, costs, and expenses (including reasonable attorneys' fees) related to Product (to the extent they are not based on the performance of validly licensed Microsoft product), including failure to meet the Quality Standards, or arising from Licensee's use of the Logo in breach of this LLA ("Licensee Claim"), provided:

(a) Licensee is notified promptly in writing of any Licensee Claim,

(b) Licensee has sole control over the defense of the Licensee Claim, and

(c) Microsoft provides reasonable cooperation in the defense of the Licensee Claim.

6. INDEMNIFICATION FROM MICROSOFT

(a) Microsoft will indemnify and defend Licensee from and against any and all third party claim(s), damages, costs, and expenses (including reasonable attorney's fees) that the Logo, when used in accordance with this LLA, infringes any trademark rights of such third party ("Microsoft Claim"), provided:

(i) Microsoft is notified promptly in writing of any Microsoft Claim,

(ii) Microsoft has sole control over the defense of the Microsoft Claim, and

(iii) Licensee provides reasonable cooperation in the defense of the Microsoft Claim.

(b) If Microsoft has reason to believe that Licensee's use of the Logo is likely to result in a Microsoft Claim, Licensee will promptly discontinue or modify its use of the Logo upon Microsoft's request. Microsoft will not be liable for any Microsoft Claim if Licensee continues to use the Logo on any new Product or materials more than 10 days after Microsoft notifies Licensee in writing that it should stop using the Logo due to such a claim. Licensee will indemnify and defend Microsoft from and against all damages, costs, and expenses (including reasonable attorneys' fees) that Microsoft may incur due to Licensee's continued use of the Logo on any new Product or materials after the 10 day notice period.

7. DISCLAIMER OF WARRANTY & LIMITATION OF LIABILITY

(a) MICROSOFT MAKES NO WARRANTIES REGARDING THE LOGO, AND HEREBY DISCLAIMS ALL WARRANTIES THAT MIGHT OTHERWISE BE IMPLIED BY LAW.

(b) NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR SPECIAL DAMAGES ARISING OUT OF THIS LLA, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8. TERM AND TERMINATION

(a) Each party will have the right to terminate this LLA without cause with 60 days prior written notice. Each party will have the right to terminate this LLA immediately for breach by the other party if the breach is not cured within 10 days of written notice to the other party of such breach.

(b) Upon expiration or termination of this LLA, Licensee will immediately cease all use of the Logo.

9. NOTICES

All notices, approvals and requests must be in writing to the name and address of the other party shown below. Each party may change the contact or addresses below by providing notice. All notices will be deemed given when:

(a) deposited in the mail, postage prepaid, certified or registered, return receipt requested; or

(b) sent by air express courier, charges prepaid.

The parties must also fax a copy of any notices to the fax numbers below on the same day.

MICROSOFT: Microsoft Corporation
One Microsoft Way
Redmond, WA 98052-6399
USA
Attention: Silverlight Logo Program
slpart@microsoft.com

Phone: (425) 882-8080
Fax: (425) 818-8990

With Copy To: Legal & Corporate Affairs,
Trademarks
Phone: (425) 882-8080
Fax: (425) 706-4112

LICENSEE: Information listed in Section 10.1 of the Agreement.

10. MISCELLANEOUS

(a) *Survival.* All definitions and the provisions of Sections 7, 8, 9, 10, as well as Sections 5 with respect to Product(s) distributed with the Logo, and 6 for claims based on use of the Logo permitted herein, shall survive expiration or termination of this LLA.

(b) *Attachments.* This LLA includes Attachment 1 which is hereby incorporated by reference.

ATTACHMENT 1

MICROSOFT SILVERLIGHT LOGO LICENSE AGREEMENT

The Logo



Logos offered under this LLA may be discontinued at any time at Microsoft's discretion. Upon notice from Microsoft regarding the discontinuation of a Logo, no new Product may be licensed for the discontinued Logo.

Specifications for using the Logo

1. The Logo may only be used on Web pages that display the Product to indicate that Product requires the Silverlight browser plug-in in order for users to receive, view, render and/or interact with Product.
2. Licensee's name or logo must appear as the primary branding on any Product where the Logo is displayed.
3. For Questions about the Logo, contact slpart@microsoft.com.